



Rabies Act 1974

1974 CHAPTER 17

An Act to make further provision for the prevention and control of rabies, and for connected purposes.

[23rd May 1974]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) An order under section 10 of the principal Act prescribing the cases in which areas are to be declared to be infected with rabies may include provision for the destruction in an area declared to be so infected, by persons authorised in accordance with the order, of foxes and such other wild mammals as may be prescribed by the order (not in either case being animals held in captivity). Infected areas—
destruction
of foxes and
other wild
mammals.

(2) An order made by virtue of subsection (1) above may make provision for—

- (a) authorising any person to enter any land (other than a dwelling-house) for the purpose of carrying out, or of deciding whether to carry out, the destruction there of animals in accordance with the order;
- (b) authorising the erection of fences or other obstacles to restrict the movement of animals into and out of an area where destruction is carried out;
- (c) regulating the ownership and disposal of the carcases of animals destroyed in accordance with the order;
- (d) prohibiting any person from obstructing the destruction of animals in accordance with the order and from interfering with the carcases of animals destroyed;

(e) authorising the use of methods of destruction which would otherwise be unlawful.

(3) An order made by virtue of subsection (1) above shall include provision as to the steps to be taken to inform the occupier of any land where it is proposed that animals should be destroyed, and other persons who may be there, of the proposal and of the methods of destruction to be used.

Infected
areas—
additional
powers.

2.—(1) An order under section 10 of the principal Act prescribing the cases in which areas are to be declared to be infected with rabies may include provision for—

- (a) requiring notice to be given, in such circumstances as may be prescribed by the order, of the death in an area declared to be so infected of such domestic or wild mammals as may be prescribed;
- (b) regulating the ownership and disposal of the carcases of animals whose deaths are required to be notified by virtue of paragraph (a) above;
- (c) requiring and regulating the vaccination, confinement and control in such an area of such domestic mammals and mammals held in captivity as may be prescribed by the order;
- (d) authorising the seizure and detention and the disposal or destruction of any animal in respect of which any provision made by virtue of paragraph (c) above is not complied with;
- (e) authorising any person to enter any land for the purpose of seizing or destroying any animal in pursuance of the order.

(2) An order under section 10 of the principal Act prescribing the cases in which areas are to be declared to be infected with rabies may provide for the division of an area into zones (whether defined by reference to distance from the places within the area where diseased animals have been found or otherwise) and for the consequences which may follow a declaration to be different for different zones.

Powers as to
quarantine
and control
of rabies
virus.

3. The provision which may be made by order under section 1 of the principal Act (general powers) shall include provision—

- (a) for requiring mammals which may be carriers of rabies to be kept in quarantine in such cases, for such periods and under such conditions as may be prescribed by the order;
- (b) for prohibiting or regulating the keeping and importation of rabies virus in any form and the deliberate introduction of the virus into animals.

4. In section 8 of the principal Act (separation of diseased animals and notice of disease) the following subsection shall be inserted after subsection (1):—

Notice of animals affected with rabies.

“(1A) Any person who knows or suspects that an animal (whether in captivity or not) is affected with rabies shall give notice of that fact to a constable unless—

(a) he believes on reasonable grounds that another person has given notice under this section in respect of that animal, or

(b) he is exempted from doing so by an order under section 1 of this Act;

and, if the animal is in his possession or under his charge, shall as far as practicable keep the animal separate from other animals.”

5. An order under section 24 of the principal Act (orders prohibiting import of animals etc.) which is expressed to be made for the purpose of preventing the introduction of rabies into Great Britain may include provision for the destruction, by such persons as may be prescribed by the order, of animals in respect of which the order or any licence granted under it is contravened.

Destruction of imported animals.

6. Without prejudice to section 80 of the principal Act (summary proceedings) an offence against that Act which is declared to be such by an order made under section 24 and expressed to be made for the purpose of preventing the introduction of rabies into Great Britain may be prosecuted on indictment; and a person convicted on indictment shall be liable to imprisonment for a term not exceeding twelve months or to a fine or to both.

Proceedings for offences connected with importation.

7. In this Act—

Interpretation.

“the principal Act” means the Diseases of Animals Act 1950 c. 36. 1950; and

“the Ministers” means the Minister of Agriculture, Fisheries and Food and the Secretary of State acting jointly.

8. Nothing in this Act shall prejudice any existing power to make orders under the principal Act.

Saving for existing powers.

9.—(1) This Act may be cited as the Rabies Act 1974.

Short title, repeals and extent.

(2) The enactments mentioned in the Schedule to this Act are hereby repealed to the extent specified in the third column of that Schedule.

(3) This Act does not extend to Northern Ireland.

SCHEDULE

ENACTMENTS REPEALED

Chapter	Short title	Extent of repeal
10 & 11 Vict. c. 89.	The Town Police Clauses Act 1847 (and that Act as incorporated with any other Act).	In section 28, the paragraph beginning "Every owner" and the following paragraph.
34 & 35 Vict. c. 56.	The Dogs Act 1871.	Section 3. In section 5, the definitions of "local authority" and "local rate". The Schedule.
55 & 56 Vict. c. 55.	The Burgh Police (Scotland) Act 1892.	In section 389, the word "rabid" wherever it occurs; the words from "and every person who shall, after notice" to "specified in such notice"; the words "or any dog not confined after such notice"; and the words from "and he may also" to the end.